

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, February 23, 2010

9:00 a.m. – Town Hall

Council Members Present:

John Ferguson, Mayor; Al Barnett; Ed Coley; John Guglielmi; Andy Hewitt; Frank Sweeten

Also Present:

Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Dick Heriot, Vice Chair-Bermuda Run Planning Board; Judy Thrift, Secretary

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as submitted and Council Member Al Barnett seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the Minutes

Council Member Andy Hewitt made a motion to approve the minutes from the December 22, 2009 Agenda Meeting as submitted. Council Member Ed Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – George Peterson stated that he was concerned that the approval of the 3% Local Occupancy Tax may discourage future industrial and commercial development. Mayor Ferguson assured him that this tax was a tax to be charged only on hotels and motels within the Town limits.

5. Proposed Action Items for March 9, 2010 Council Meeting

A. Town Resolution Requesting Legislation to Enact a 3% Local Occupancy Tax

Council Member John Guglielmi asked if this 3% Occupancy Tax could be raised at a later time. Town Manager Rollins explained that the Town of Bermuda Run is only allowed to impose an occupancy tax at the rate not to exceed 6% when combined with the County occupancy tax rate of 3%.

Council Member Sweeten made a motion to place a *request that the Council adopt a Resolution requesting the General Assembly enact local legislation that will allow the Town of Bermuda Run to collect a 3% room occupancy tax. Councilman Al Barnett seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

6. Town Manager Update/Town Projects List – Attached and included by reference.

Councilman Hewitt asked for an update on the Walkable Bermuda Run Plan and Council Member Sweeten inquired as to whether the Planning Board had received a schematic indicating exact locations for the sidewalks. Janet Smith, Planning Board Chair, reported that John Grey, Town Engineer, was working on this and they hoped to have this information prior to the next Planning Board Meeting. Town Manager Rollins referred to the Manager's Update for information on prioritizing sidewalks in the Club Residential Section and the Commercial Section.

Council Member Andy Hewitt asked for an update on the following:

1. Fescue stormwater problem - Manager Rollins pointed out that John Grey is working on this.
2. Where does the Town stand on the completion of the Postal Kiosks' – Manager Rollins advised that this issue would be on the Appearance Committee Agenda in March.
3. What is the schedule for the new access control implementation – Mr. Rollins reported that this is already a work in progress and letters would be sent out to all residents soon. Both systems will be in operation until the transfer of all information is complete. This should be the end of March or early April.

Councilman Sweeten requested that the Council be given a copy of the letter regarding the new gate system prior to the letter being sent out to all residents.

Councilman Sweeten also pointed out that the Town's anniversary date of March 10 for annexing commercial areas was approaching. Lee Rollins handed out a map to each Council Member. Attached and included by reference. Town Attorney Williams informed the Council that annexing an area does not automatically mean that the roads will become public roads. Annexation requires some types of services, but that service does not have to be roads. Council Member Al Barnett asked if we should take in the roads up front, and Town Attorney Williams stated that the roads have to be dedicated to the Town and accepted before they could become public roads. Councilman John Guglielmi asked if there was a reason for not taking in the three lots between Natures Way and Peachtree. Mayor Ferguson pointed out that that was a possibility, and he felt that the two homeowners located in that same area should be contacted to see if they would like to be annexed voluntarily. Town Manager Rollins stated that he would follow up on this suggestion.

Mr. Rollins advised the Council that Pembroke Homeowner Association President, Vince Manino, had asked the Town to consider accepting the roads in Pembroke Ridge. Mr. Manino based this request on the fact that Hamilton Court is across the street from Pembroke and the Town has taken over roads in Hamilton Court. Mayor Ferguson pointed out that these two associations are different in that Pembroke has blacktopped their streets and this is also where the residents park. If the Town took over their streets, Pembroke would lose their parking. The Council agreed that Hamilton Court has a defined road and Pembroke Ridge is mainly a parking lot. In light of this, the Council unanimously agreed not to take over the roads in Pembroke Ridge.

Manager Rollins asked Town Attorney Brian Williams to discuss the possibility of collecting gate management fees with property taxes. Attorney Williams read a Statue to the Council that he thought could be used as a basis for collecting gate management fees the same way as property taxes. He explained to the Council that a Resolution would be needed and presented at the March Town Council Meeting. Town Attorney Williams agreed to provide a Resolution for the Council to consider asking the General Assembly for local authority to bill gate fees along with property taxes. Council Member *John Guglielmi made a motion to place a Resolution authorizing the Town to collect gate management fees the same way as property taxes on the March Town Council Agenda. Councilman Ed Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

7. February 8, 2010 Financial Report – Questions/Comments/Review

Lee Rollins reminded the Council that the Town has been using QuickBooks for small businesses as their software system since 1999. He would like to recommend the purchase of a Fund Accounting Software System for municipalities be placed on the March Agenda Meeting.

8. Adjournment

With no further business, Council Member Andy Hewitt made a motion to adjourn. The motion was seconded by John Guglielmi and was approved by a vote of five (5) in favor and none opposed.

Respectfully submitted,



Lee Rollins, Town Clerk

Approved:



John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, March 23, 2010
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett; Ed Coley and Frank Sweeten

Council Members Absent: John Guglielmi and Andy Hewitt

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Dick Heriot, Vice Chair-Bermuda Run Planning Board; Erin Burris, John McHenry and Jason Epley with Benchmark; Judy Thrift, Secretary

1. Call to Order

Mayor Ferguson called the meeting to order. Town Manager Lee Rollins requested one item be added to the Agenda as 5. C. Discuss renewal of audit contract.

2. Adoption of the Agenda

Council Member Frank Sweeten made a motion to adopt the agenda as amended and Council Member Ed Coley seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

3. Approval of the Minutes

Council Member Frank Sweeten made a motion to approve the minutes from the February 23, 2010 Agenda Meeting as amended. Council Member Al Barnett seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for April 13, 2010 Council Meeting

A. Follow Up of Consideration to Annex Areas Identified March, 2009(#1)

Town Manager Lee Rollins introduced Erin Burris with Benchmark. Ms. Burris thanked everyone for allowing Benchmark Resources to present an Annexation Summary outlining the two options as it relates to moving forward with commercial annexation within the Town's ETJ. Ms. Burris introduced John McHenry, Annexation Specialist; and Jason Epley, Executive Vice President of Special Projects with Benchmark. John McHenry presented a map obtained from Davie County GIS indicating the areas open for discussion. Erin Burris followed the summary of the two different approaches - Voluntary Annexation or the Involuntary Annexation.

Attached and included by reference.

Mayor Ferguson reminded the Council that prior annexations by the Town have been voluntary, and he suggested that the Council think about the history of the Town before making a decision.

He also stated that he would like to know how many property owners want voluntary annexation.

Councilman Coley stated that he felt the Town had pretty much established a path of voluntary annexation, but he also felt that the Town has a right to proceed with involuntary annexation.

Council member Al Barnett questioned whether or not an honest effort had been made to poll all property owners to see if all concerned were interested in being annexed. Councilman Barnett wanted assurance that all options were considered before making a decision.

Councilman Sweeten asked Mrs. Burris if questions and answers had been considered in regard to what services would be offered to property owners for them to voluntarily want to be annexed. Mrs. Burris assured the Council that questions and answers would be reviewed thoroughly prior to sending out any letters.

Town attorney Brian Williams emphasized that all areas in the Town's ETJ could be identified for Annexation and a Resolution of Consideration could be renewed every year. It was not mandatory for the Council to make a decision at this time.

Manager Lee Rollins recommended that consideration for annexation not be included on the April 13, 2010 Council Meeting Agenda. *Council Member Al Barnett made a motion to table the move to Contract with Benchmark for Annexation Services to a later date. Councilman Sweeten seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.*

B. Request to Fill Vacant Planning Board Alternate In Town Position (#2)

Attached and included by reference.

Town Manager Lee Rollins reported to the Council that approximately ten applications had been received expressing an interest in serving the Town. The question of whether the Council would propose to have a Planning Board and a separate Board of Adjustment or one Board made up of the same members. Mr. Rollins reported to the Council that this would be a Council decision; however, the Planning Board wanted the Council to know that they would be willing to accept this added responsibility if the Council chose to vote on this at the April Council Meeting.

Councilman Coley and Councilman Sweeten expressed their concerns if this became one Board. They would prefer to keep the Boards separate. Councilman Barnett suggested that members of the Board of Adjustment attend the Planning Board meetings to assist them on keeping abreast of current issues. Manager Rollins expressed his desire for the Council to make a decision on filling the current positions available at the next Town Council Meeting in April. He also stated that he would like to see Janet Smith remain Chairman of the Planning Board for another term and the Council unanimously agreed.

Council Member Ed Coley made a motion to place filling the vacant Planning Board Alternate in Town Position on the April 13, 2010 Council Meeting Agenda. Councilman Al Barnett seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

C. Discuss Audit Contract

Manager Rollins asked the Council if it would be necessary to take a look at other auditors for the next physical year and were there any concerns in regard to the current auditor. *Council Member Ed Coley made a motion to place the vote on contracting with Allred and Carrick on the April Town Council Agenda. Councilman Al Barnett seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.*

6. Town Manager Update/Town Projects List – Attached and included by reference.

Town Manager Rollins asked the Council to refer to the Estimate of Increased Revenue for the Town of Bermuda Run if the Town should choose to annex Kinderton residential. Dick Heriot, Vice Chair-Bermuda Run Planning Board, reminded the Council that he would need to make contact with each resident in Kinderton residential, and this would be a major undertaking. He did not feel comfortable pursuing this project without some assurance from the Council beforehand. Town attorney Brian Williams informed the Council that a Public Hearing would be necessary and no assurances could be given ahead of time.

7. *With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Al Barnett and was approved by a vote of three (3) in favor and none opposed.*

Respectfully submitted,

A handwritten signature in dark ink, appearing to read "Lee Rollins", is written over a horizontal line.

Lee Rollins, Town Clerk

Approved:

A handwritten signature in blue ink, appearing to read "John H. Ferguson", is written over a horizontal line.

John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, April 27, 2010

9:00 a.m. – Town Hall

Council Members Present:

John Ferguson, Mayor; Al Barnett; Ed Coley, John Guglielmi; Frank Sweeten and Andy Hewitt

Council Members Absent:

Also Present:

Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Dick Heriot, Vice Chair-Bermuda Run Planning Board; Erin Burris with Benchmark; Judy Thrift, Secretary

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member Andy Hewitt made a motion to adopt the agenda and Council Member Al Barnett seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

3. Approval of the Minutes

Council Member Frank Sweeten made a motion to approve the minutes from the March 23, 2010 Agenda Meeting. Council Member Al Barnett seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for May 11, 2010 Council Meeting

A. TA 2009-05 CR District Setbacks & Clarifications in Table of Uses & Additional Conditions (#1)

Lee Rollins asked Erin Burris to provide additional overview to the information requesting amendments to the zoning ordinance regarding CR District Setbacks and Clarifications in the Table of Uses and Additional Conditions. Council Member Frank Sweeten asked why the request for setback changes in the CR District. Erin commented that the proposed setbacks are in keeping with the existing platted setbacks on lots. The Mayor agreed that this was a good move. The Mayor then asked about the proposal to change the maximum setback in the Gateway Corridor Overlay District. He asked to consider why there should be a maximum setback at all. Janet Smith stated that she wanted the intent of the change in maximum setback to allow additional landscaping and buffer. She would be willing to take the discussion of the GCO maximum setback to the Planning Board once again for discussion. The Council felt it would be a good idea to refer the issue back to the Planning Board for further deliberation.

Council Member Andy Hewitt made a motion to propose that a public hearing be set at the May 11, 2010 Council meeting to consider the proposed changes from the Planning Board and staff. Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed

B. TA 2009-03 Building Design Clarification (#2)

Erin Burris also explained the rationale for the proposed changes to Building Design Clarification in the zoning ordinance.

Council Member Andy Hewitt made a motion to proposed that T.A 2009-03 Building Design Clarification be added to the public hearing at the May 11, 2010 Council Meeting. Councilman Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

6. Town Manager's Update – Attached and included by reference.

Town Manager Rollins presented a Resolution in support of North Carolina's current ABC system and requested that this Resolution be placed on the May 11, 2010 Town Council Meeting Agenda.

Council Member Al Barnett made a motion to place the Resolution in support of North Carolina's current ABC system on the May 11, 2010 Council Meeting Agenda. Councilman Andy Hewitt seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

Manager Rollins discussed proposed street paving for Town streets during 2010-2011 and I-40 landscape enhancement. NCDOT will prepare a sample agreement for review in anticipation of the enhancements on the I-40 corridor.

7. New Added Business or Action Items

Councilman Hewitt asked if visuals had been prepared for the walkable sidewalks on Bermuda Run Drive and Riverbend Drive. Janet Smith, Bermuda Run Planning Board Chair, advised that these visuals are being prepared for approval by the Planning Board.

Secondly, Councilman Hewitt reminded everyone that parking on the street has been and always will be a problem in Bermuda Run unless an Ordinance is established. Mayor Ferguson assured Council Member Hewitt that this problem had been addressed previously.

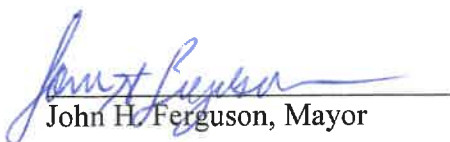
8. *With no further business, Council Member Frank Sweeten made a motion to adjourn. The motion was seconded by Council Member John Guglielmi. The motion was approved by a vote of four (4) in favor and none opposed.*

Respectfully submitted,



Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, May 25, 2010

9:00 a.m. – Town Hall

Council Members Present:

John Ferguson, Mayor; Al Barnett; Ed Coley; John Guglielmi; Andy Hewitt and Frank Sweeten

Also Present:

Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Dick Heriot, Vice Chair-Bermuda Run Planning Board; Erin Burris, Benchmark; Judy Thrift, Secretary

1. Call to Order

Mayor Ferguson called the meeting to order. The following requests were asked to be added to the Agenda as follows:

- 7. A. Councilman Al Barnett – Discussion of Gate Operations
- 7. B. Councilman Frank Sweeten – Annexation of Kinderton Commercial
- 7. C. Councilman Ed Coley – Postal Centers - Kiosks within Bermuda Run
- 7. D. Town Manager Lee Rollins – Waiver of Insurance Waiting Period for Employees

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as amended and Council Member Al Barnett seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the April 27, 2010 Minutes

Council Member Andy Hewitt made a motion to approve the minutes from the April 27, 2010 Agenda Meeting. Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for June 8, 2010 Council Meeting

A. Public Hearing – Proposed 2010-2011 Town Budget

Town Manager Lee Rollins asked the Mayor and Council if they had any questions on the proposed budget. Mayor Ferguson and the Council questioned the Utility Fund Revenue. Manager Rollins advised that he is meeting with Jim Stockert and Johnny Lambert regarding the amount the County is billing on the Town's behalf and the amount of bulk water that the Town is paying out to the County. This matter will be researched prior to a Public Hearing on the proposed budget.

Manager Rollins answered all questions presented to him regarding the proposed budget and a copy of the 2010-2011 Town Budget as well as Budget Highlights is attached and included by reference.

Councilman Al Barnett made a motion that a Public Hearing to consider the proposed 2010-2011 Town Budget be placed on the June 8, 2010 Council Meeting Agenda. Councilman Andy Hewitt seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

Council Member Al Barnett commended Manager Rollins on his presentation and work on the proposed budget. The Mayor and all Council Members agreed.

6. **Manager's Update/Town Projects List** – Attached and included by reference.

Town Manager Rollins advised the Council that he and John Grey have asked Miller Landscaping to prepare a visual of the proposed sidewalk on Bermuda Run Drive. This will be reviewed by the Planning Board at their June 16, 2010 meeting.

Manager Rollins thanked attorney Brian Williams for his work on the Bill Draft for the Bermuda Run Debt Collection/Gates & Fences. A copy was distributed to each Council Member and is attached and included by reference.

7. **New Added Business or Action Items**

A. Discussion of Gate Operations

Council Member Barnett felt that the role of the Town's gate attendants and what is expected of them should be reviewed at this time. He also expressed that the changeover to the new gate access system would be a good time to work with Budd Services as well as all residents who must understand their necessary role in order for the new system to work properly.

The Council unanimously agreed that this would be the perfect time to educate all concerned and to make any changes that may be necessary.

B. Annexation of Kinderton Commercial

Council Member Sweeten asked if the Council could come to a consensus on their position for Voluntary as opposed to Involuntary Annexation. Erin Burris with Benchmark and Town Attorney Williams addressed the Council and reminded them that in Involuntary Annexation, the property owner cannot be required to bring their current landscaping up to Town standards. It would be unfair to require improvements to those who want to voluntarily annex and then turn around and take in others involuntarily at no expense to them. Mayor Ferguson reminded the Council that historically the Town has required certain landscaping changes to the parking areas but not the facades. If the property should be a rebuild, then there would be a façade issue. Councilman Ed Coley asked if Benchmark could still be contracted to handle the entire project and then make a presentation to the Council. This presentation would include a canvassing of all properties. Erin Burris stated that Benchmark would be willing to contract this project at a cost of \$63.00 per hour or a total cost of \$6,000.00. *Council Member Barnett made a motion to award the total annexation project to Benchmark. Council Member Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

7. C. Postal Centers - Kiosks in Bermuda Run

Manager Rollins informed the Council that there may be a delay in the Kiosk project. Some Associations do not want these centers, and the Advance Postmaster has advised that he will have to send the proposal to Greensboro for final approval. The main concern is added mileage to the carriers in delivery of the mail and budgetary issues. Mayor Ferguson suggested that since part of the Associations do not want the postal centers and, due to cost cutting measures within the Postal System, perhaps this plan should be dissolved. *Council Member Al Barnett made a motion to dissolve the Kiosk project. Council Member Ed Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

7. D. Waiver of Insurance Waiting Period for New Employee

Manager Rollins explained to the Council that the Town of Bermuda Run's Personnel Policy Manual indicates a six-month probationary period for new employees. The North Carolina League of Municipalities only requires a one-month waiting period for insurance coverage on a new employee. Therefore, Mr. Rollins asked the Council to consider waiving the six-month waiting period for the Town's new employee. *Council Member Andy Hewitt made a motion to waive the six-month waiting period and change it to a thirty day waiting period. Council Member Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

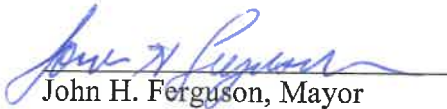
With no further business, Council Member Andy Hewitt made a motion to adjourn. The motion was seconded by Council Member John Guglielmi. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully submitted,



Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, June 27, 2010

9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett, John Guglielmi, and Frank Sweeten

Council Members Absent: Ed Coley and Andy Hewitt

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Erin Burris, Community Planner; and Cindy Griffith, Administrative Support

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member Al Barnett made a motion to adopt the agenda, and Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

3. Approval of the June 22, 2010 Minutes

Council Member Al Barnett made a motion to approve the minutes from the June 22, 2010 Agenda Meeting, with motion seconded by Council Member Frank Sweeten. The motion was approved by a vote of three (3) in favor and none opposed.

4. Citizen's Comments – None

5. Information Items:

A. Update of Voluntary Commercial Annexation Initiative

Erin Burris, Community Planner (Benchmark); and Lee Rollins, Town Manager updated the Council on the status of the property owners that have been contacted and provided viable options for moving forward with the process. Erin and Benchmark will move forward with process to adopt a Resolution of Intent to present at the August 10, 2010 Council Meeting. (Attachments)

6. Proposed Action Items for August 10, 2010 Council Meeting:

A. Proposed Text Amendment to Zoning Ordinance – Request for Public Hearing TA 2010-01 Parking and Landscaping, Gateway Corridor Overlay Maximum

The Planning Board approved proposed text amendment changes to clarify intent for enhanced landscaping, allowing up to two rows of front parking and setting a maximum setback (100 feet) for properties fronting the Gateway Corridor Overlay. (Attachment) *The proposal for Council to set a Public Hearing for August 10, 2010 to consider the proposed text amendments was approved by Council Member Frank Sweeten with a second by Council Member Al Barnett. Three were in favor, none opposed.*

B. Recommendation for Members to Bermuda Run Board of Adjustment (#1)

Residents Ed Vogler and Bill Holdgrafer and ETJ member Jean Saunders have agreed to serve second terms on the Board of Adjustment. *Motion was made by Council Member John Guglielmi with a second by Council Member Al Barnett that these appointments be considered during the August 10 Meeting. Three (3) were in favor and none opposed.*

C. Proposed Resolution to Honor Davie County Native and Historian James Wall

(#2) There is a plan to honor Mr. James Wall at the August 12, 2010 Mocksville Masonic Picnic. A joint resolution from Davie units of government is recommended. *Council Member Al Barnett made motion for this resolution to be placed on the August 10, 2010 Agenda. Council Member John Guglielmi seconded the motion. Three (3) were in favor, and none opposed.*

7. Manager's Update/Town Projects List

Attached and included by reference.

8. New Added Business or Action Items

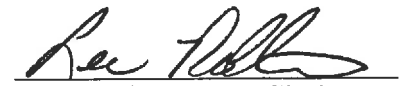
A. Status on the repair of the 158 Gate (CapSure reader) that is believed to have been struck by lightning on 7/20/10 was reviewed. It is agreed that the level of service we have received has not been acceptable. The job performance of the Security Guards at the gates was also discussed and it agreed that they need to do a better job with monitoring who is allowed in the gates. The possibility of taking bids for a new Security Company was discussed.

B. Council Member John Guglielmi suggested that Duke Power be contacted to cut the trees along Highway 801. They are hitting the power lines and are being burned at the tops; this may be causing trouble with the power for Bermuda Run residents. It is also an eye-sore and a safety hazard. If Duke Power will not cut the trees, the town has McCoy's Tree Service on contract and they will be contacted.

Adjourn

With no further business, Council Member Al Barnett made a motion to adjourn. The motion was seconded by Council Member John Guglielmi. The motion was approved by a vote of three (3) in favor and none opposed.

Respectfully Submitted,


Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

**Tuesday, August 24, 2010
9:00 a.m. – Town Hall**

Council Members Present: John Ferguson, Mayor; Ed Coley, John Guglielmi, and Frank Sweeten

Council Members Absent: Al Barnett and Andy Hewitt

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Erin Burris, Community Planner; and Cindy Griffith, Administrative Support

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Lee Rollins asked that the agenda be amended to include item 5. AA. Update of Commercial Annexation Initiative.

Council Member John Guglielmi made a motion to adopt the agenda as amended and Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

3. Approval of the July 27, 2010 Minutes

Council Member Frank Sweeten made a motion to approve the minutes from the July 27, 2010 Agenda Meeting, with motion seconded by Council Member Ed Coley. The motion was approved by a vote of three (3) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for September 14, 2010 Council Meeting:

AA. Update of Commercial Annexation Initiative

Erin Burris, Community Planner (Benchmark) presented an Annexation Report (attachment) to the Council. Town Manager Lee Rollins thanked Erin and her team for their hard work. Goal for completion of the annexation project is December 31, 2010. All dates for the timeline have been met to date. *Council Member John Guglielmi made motion to accept this document, with a second by Council Member Ed Coley. Three were in favor, none opposed.*

A. DRAFT Ordinance # 2010-03 Fats, Oil, and Grease Regulations (#1)

Town Manager Lee Rollins presented an Ordinance to the Council regarding the proper disposal of grease from food-preparation areas (BR Country Club, pool, other areas that prepare food). Purpose of the DRAFT ordinance is to aid in the prevention of sanitary sewer blockages and obstructions from the contribution and accumulation of fats, oils, and greases into the sewer system from industrial, and commercial and institutional establishments. The ordinance authorizes penalties for non-compliance. Town Attorney Brian Williams will review.

B. DRAFT Ordinance # 2010-04 Utility Ordinance to Require Connection to Town or Town Contracted Water and Sewer or Impose Availability Fee (#2)

Purpose of the DRAFT ordinance is to prevent further installation of, or repairs to septic systems and provide equitable distribution of capacity costs for the sewer system. (Attachment)

C. DRAFT Resolution Implementing a 3% Tourism Occupancy Tax Within the Town of Bermuda Run and Establishing a Tourism Development Authority to Administer the use of the Occupancy Tax (#3)

Purpose of the DRAFT resolution is required in order to officially enact an Occupancy Tax and administer the tax proceeds for tourism and tourism-related expenditures. (Examples: Hampton Inn, Winn Mock Barn) The Council agreed to present at the September 14, 2010 meeting. (Attachment)

6. Manager's Update/Town Projects List

- A. Council Member Frank Sweeten inquired about the new device that will track the speed of vehicles in Bermuda Run. Town Manager Lee Rollins has ordered the device and it should arrive within the next couple of weeks.
- B. Council Member John Guglielmi asked about the status of the removal of the trees along Highway 801. Town Manager Lee Rollins has spoken with Randy Welch, Duke Energy and is waiting to get a date for the removal of the trees. The Appearance Committee will also discuss the type of tree to replace the ones that Duke Energy cuts down. (Nellie Stevens have been suggested and the estimated installed cost would be \$45,000)

- C. Council Member Frank Sweeten expressed concerns about the pot holes in Bermuda Run. Lee Rollins, Town Manager, advised that work to fix these holes should begin within the next couple of weeks.
- D. Council Member John Guglielmi asked about the status of bulk water meters. New ones should be installed by John Crotts beginning in the next 2-3 weeks on Bing Crosby, per Town Manager Lee Rollins.
- E. Update on new Highway 158 Bridge – No known date of completion as of yet. The issue with the sewer lines is still halting completion.
- F. Town Manager Lee Rollins provided the Council Members with a map showing the streets that have been paved and what year they were paved. The map was generated by John Grey Engineering.
- G. Update on the new RFID Capsure System for the Bermuda Run gate management was given by Lee Rollins. Southern Time is working with Capsure to solve the issues regarding multiple cars entering the gate at the same time. Mayor John Ferguson has also requested that an update be made to the software to show the time down to the seconds (not just the hour and minute) that a vehicle enters the gate. It was agreed that signs should be placed at the gates and at the Post Office to remind residents that their old bar codes will no longer work after Labor Day.
- H. New Hospital update – Town is waiting to receive a site plan for consideration.

8. New Added Business or Action Items

- A. August 25, 2010 will be Lee Rollins' one-year anniversary as the Bermuda Run Town Manager. An evaluation form was given to the Council Members as well as to Janet Smith and Brian Williams in order to give feedback regarding Lee's performance. All forms are to be submitted to Council Member Ed Coley before September 13, 2010. Council Member Ed Coley will give feedback to Lee Rollins. A closed Executive Session will be held at the September 14, 2010 Council Meeting to review a possible change in salary for the Town Manager.

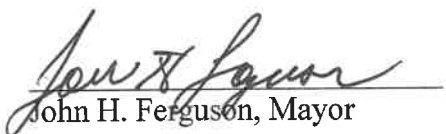
Adjourn

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member John Guglielmi. The motion was approved by a vote of three (3) in favor and none opposed.

Respectfully Submitted,


Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, September 28, 2010
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; John Guglielmi, Frank Sweeten, Al Barnett, Andy Hewitt, and Ed Coley

Council Members Absent: None

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Cindy Griffith, Administrative Support; Ken Bateman and Dick Heriot, representatives from Kinderton Village

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda, and Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

3. Approval of the August 24, 2010 Minutes

Council Member Frank Sweeten made a motion to approve the minutes from the August 24, 2010 Agenda Meeting, with motion seconded by Council Member Al Barnett. The motion was approved by a vote of four (4) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for October 12, 2010 Council Meeting:

A. PUBLIC HEARING: to Consider Resolution Implementing a 3% Tourism Occupancy Tax within the Town of Bermuda Run and Establish a Tourism Development Authority to Administer the Use of the Occupancy Tax

Before enacting the Tourism Occupancy Tax and establishing a Tourism Development Authority, the General Statutes require that a public hearing be held. Town Manager Lee Rollins proposed to have the Public Hearing on October 12, 2010. The Council was in favor of moving forward. (Attachment #1)

B. PUBLIC HEARING: On the question of annexation of the territory as described in (Attachment #2) The Council must wait at least 10 days and no longer than 90 days to adopt the annexation ordinance. Public Information Session to be held on September 28, 2010 at 6:00 pm.

6. New Business or Action Items

A. Request for Annexation from Kinderton Village (Attachment #3) Town Manager Lee Rollins presented the Council with different approaches to annexation (Resolution of Intent vs. Resolution of Consideration) and the different approaches to voting and representation. Dick Heriot and Ken Bateman (representatives in favor of Kinderton's annexation) gave updates on the data that had been collected from residents of Kinderton expressing that well over half of the residents want to be annexed. It was agreed that the commercial annexation project (Item 5A) should be concluded, and that the Town of Bermuda Run needs time to analyze the service plan. Kinderton residents expect the same services that the Town of Bermuda Run provides to Bermuda Run residents presently. This includes landscape, garbage pickup, lighting, etc. in common areas. Council Member John Guglielmi requested a map showing the common areas in Kinderton Village. Town Manager Lee Rollins proposed that the Town move forward with adoption of a Resolution of Consideration. The effective date of annexation would not change.

7. Manager's Update/Town Projects List

- A. Bulk Water Agreement – Lee has been working with Eddie Carrick and with the County water department regarding analysis of the water reading reports.
- B. Sewer – Lee shared a map of properties that are on the sewer system, and the ones that are on the system but have not been charged for the service.
- C. Sidewalk Project – Quote from Grey Engineering jumped from \$95,000 to \$211,683. Council agreed to “start fresh” and get quotes from other sources.
- D. No word as of 9/28/10 from the new hospital. Management changes have been made, but no site plan has been submitted.
- E. An update was given regarding the gates and the new Capsure system. Lee thanked Cindy Griffith for her work on this project.
- F. Quotes are being received for leaf pickup. Lee suggested that Brush Pickup would be a great addition to Bermuda Run services as well.

8. Executive Session Called to Order - Personnel Discussion

Council member Ed Coley made the motion to go into Executive Session to discuss a personnel issue. The motion was seconded by John Guglielmi. The motion was approved by a vote of five (5) in favor and none (0) opposed. Councilman Coley reviewed the results of Town Manager Lee Rollins' recent evaluation.

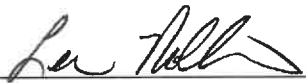
Council member Ed Coley made a motion to go out of Executive Session and move back into open session. Council member John Guglielmi seconded the motion. The motion was approved by a vote of five (5) in favor and none (0) opposed. Council member Al Barnett made a motion that Lee Rollins receive a 5% increase in salary effective 10/1/10. Council

member Ed Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none (0) opposed.

Adjourn

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member Andy Hewitt. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully Submitted,



Lee Rollins, Town Clerk

Approved:



John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, October 26, 2010
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; John Guglielmi, Frank Sweeten, Al Barnett, Andy Hewitt, and Ed Coley

Council Members Absent: None

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Planning Board; Erin Burris, Zoning Administrator; Mark Schambach, Social Media Coordinator/Davie County; Cindy Griffith, Administrative Support; Ken Bateman, Mike Jenkins and Dick Heriot, representatives from Kinderton Village

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member Andy Hewitt made a motion to adopt the agenda, and Council Member Al Barnett seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the September 28, 2010 Minutes

Council Member John Guglielmi made a motion to approve the minutes from the September 28 meeting, with motion seconded by Council Member Al Barnett. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – Dick Heriot spoke saying that he would like to make comments regarding the Annexation of Kinderton when that point came in the meeting.

5. Information Items:

A. Update – Changes to Town Website

Mark Schambach, Social Media Coordinator for Davie County, presented a proposed new website for the Town of Bermuda Run. The current website (www.townofbr.com) serves more as a “brochure” where the improved site would have more current, up-to-date information to communicate to residents and potential visitors, new business prospects to the area. The new site would have a

more modern, cleaner theme. The Council was in agreement for Town Manager Lee Rollins to work with Mark in making corrections to the site and moving forward with implementation over the next few months.

B. Petition from Kinderton Village Residents Requesting Annexation – Next Steps

Erin Burris, Town Planner, presented the plan for moving forward to consider annexation of Kinderton Village. Dick Heriot, who represents Kinderton Village residents, expressed concern that he would like to see everything approved before a new Council is elected. Either proposal would not meet Mr. Heriot's request. One possibility of a speedier process would be to have Bill Burnett's property voluntarily annexed before the process begins.

Concerns were also presented regarding the clarification of "Common Areas" in Kinderton and the expectations of maintenance of those areas from the Town of Bermuda Run. Council Member John Guglielmi expressed that it is important to ask, "What is best for the Town of Bermuda Run?"

Lee Rollins recommended that the Council vote at the November 9, 2010 meeting to adopt a Resolution of Consideration to start the clock. He also asked Erin Burris to begin working on a proposed Services Plan for the area considered for annexation.

Council Member Andy Hewitt called a query to move on to the Resolution of Consideration, review the Service Plan, then decide on whether to move on to a Resolution of Intent. Council Member Ed Coley made a motion to accept, this was seconded by Council Member Al Barnett. Five (5) were in favor and none (0) opposed.

C. Proposed Yadkin River Greenway Study

Susan Hatchel, architect is scheduled to present the plan at the public information session on November 1, 2010 at 6:30 pm in the clubhouse ballroom at Tanglewood. The Town of Bermuda Run contributed \$3,000.00 to participate in the project and has made no commitment.

6. Proposed Action Items for November 9, 2010 Council Meeting:

A. Annexation Ordinance to Extend the Corporate Limits of the Town (#3)

An ordinance to annex the Exit 180 Commercial Area is needed to complete the annexation process that began back in March, 2009 when a Resolution of Consideration to annex was adopted by the Council. If approved the Exit 180 Commercial Area will be annexed effective December 31, 2010. *Propose that the Council approve the annexation ordinance.*

B. DRAFT Code of Ethics for the Town Council of the Town of Bermuda Run (#4)

Brian Williams, Town Attorney, has presented a draft Code of Ethics that meets the NC statutory requirements. A Code of Ethics must be adopted by December 31, 2010. *Propose that the Council approve the Code of Ethics.*

C. DRAFT Resolution of Adoption – Town Hazard Mitigation Plan (#5)

Jerry Myers, Director of Emergency Management for Davie County has asked each municipality in Davie County to approve the attached resolution, as has been done in the past. Jerry will be present at the November 9, 2010 Council Meeting to officially present the resolution.

7. Manager's Update/Town Projects List

Lee Rollins presented a written update to the Council.

8. Additional Items

Mayor John Ferguson requested that the Council have a special Call Meeting/Planning Session on *Tuesday, December 7 at 9:00 a.m.* to finalize on-going items. Council members were urged to respond if they had any action items to add to the list.

Adjourn

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member Andy Hewitt. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully Submitted,


Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, November 23, 2010
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Frank Sweeten, Al Barnett, Andy Hewitt, and Ed Coley

Council Members Absent: John Guglielmi

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Planning Board; Erin Burris, Zoning Administrator; Eddie Carrick, Auditor

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member Frank Sweeten made a motion to adopt the agenda, and Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

3. Approval of the October 26, 2010 Minutes

Council Member Andy Hewitt made a motion to approve the minutes from the October 26th meeting. Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

4. Citizen's Comments – There were none.

5. Information Items:

A. Presentation of the 2009-2010 Town Financials

Eddie Carrick presented the 2009-2010 Audit to the Town Council. He explained the audit was performed in the same time frame, but the state Local Government Commission is taking up to a month longer to approve. He directed the Council to pages 3-12 of the audit report, which provides a good snapshot of prior year to current. Costs are roughly identical to prior year. Town fund balance is 94% of anticipated expenditures. The LGC requires an 8% fund balance and the average fund balance of towns in North Carolina is 20% to 30%.

6. Proposed Action Items for December 14, 2010 Council Meeting:

A. TA 2010-02 Fuel Stations, Buildings & Structure Definitions

Erin Burris presented the proposed text amendments from the Planning Board. The Proposed changes clarify the size of a fuel station with the number of pumps and require additional landscaping around street frontages. There are also new design requirements for columns and no backlit canopies. Frank Sweeten asked if the proposed changes also included changes to strengthen the sign ordinance. Erin explained that the sign ordinance is being reviewed by the Planning Board for possible text amendments and will come before the Council for consideration at a later date. Al Barnett cautioned about too many requirements, lest the Town be perceived as anti-business. Andy Hewitt likes the landscaping requirements in the proposed changes.

B. TA 2010-04 Lighting Requirements

The intent of the text amendments is to make all lighting requirements in the Town Ordinance consistent and to incorporate Duke Energy, Illuminating Engineering Society and International Dark Sky Association standards where appropriate.

Council Member Al Barnett made a motion to set a Public Hearing on Tuesday, December 14, 2010 for public comment of proposed text amendments for TA 2010-02 and TA 2010-04. Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

C. Benchmark Contract – Annexation Consulting Services (Kinderton Village)

The Council agreed to place on agenda for the December 14, 2010 Council Meeting, consideration of a contract for Benchmark to conduct an Annexation Assessment for consideration to annex Kinderton Village residential.

D. Benchmark Contract – Comprehensive Plan

The Council agreed to place on the agenda for the December 14, 2010 Council Meeting, consideration of the contract for Benchmark to conduct a Comprehensive Plan, which has been allocated in the 2010-2011 Town budget.

E. Project U-4742 MA: 158/801 Intersection Improvement Project

A federal agreement of the Intersection Improvement Project was submitted to Council for review. The Mayor asked that there be a map of the project so Council could see what was proposed. The Council agreed to place on the December 14, 2010 Council Meeting for consideration to approve the agreement.

7. Manager's Update/Town Projects List

Lee Rollins presented a written update to the Council.

Mayor Ferguson requested that the Council hold a special meeting on December 7, 2010 at 9:00AM to discuss the strengths and weaknesses associated with current name of the town. The Council agreed to hold the special meeting at that time.

Adjourn

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of four (4) in favor and none opposed.

Respectfully Submitted,



Lee Rollins, Town Clerk

Approved:



John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, January 25, 2011
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett; Ed Coley, John Guglielmi, Andy Hewitt and Frank Sweeten

Council Members Absent: None

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Erin Burris and John McHenry, Benchmark; John Grey and Joy Howard with Grey Engineering; Dick Heriot and Ken Bateman, Kinderton Village; and Cindy Griffith, Secretary

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as presented and Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the November 23, 2010 Meeting Minutes

Council Member Andy Hewitt made a motion to approve the minutes from the November 23, 2010 Agenda Meeting. Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for February 8, 2011 Council Meeting:

A. Consideration of Contract for Audit Services (#1):

Manager Lee Rollins presented the contract from Allred & Carrick, CPAs for consideration. There were no increases in fees from 2010. Mayor Ferguson suggested that Lee Rollins get other bids for 2012 for consideration. *The motion to keep Allred & Carrick for 2011, but entertain other bids for 2012 was made by Council Member John Guglielmi and Council Member Al Barnett seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

6. Gate Operation and Maintenance Fees (#2)

Manager Lee Rollins shared a letter that was sent to the Bermuda Run Country Club about past-due payments for gate fees. He shared the response that was received from Bruce Szafron with the Country Club. There is a lien on the property, but foreclosure would be the next step.

There are also liens on the properties of several Bermuda Run residents that have not been paying their gate fees. It was discussed that the Town deactivate all RFID devices that have been issued to Country Club members and to the residents that are in arrears. Special Legislation allows action now to residents who are not paying. It was stressed that the Town treats everyone equally when it comes to asking for payment.

The Council asked Lee Rollins to send a certified letter to all parties notifying them of arrears and asking for payment resolution.

Manager Lee Rollins also suggested combining the gate fees with property taxes. Mayor Ferguson suggested having this topic at the March, 2011 meeting during budget time.

7. New Added Business or Action Items as Requested

Attached and included by reference.

8. Planning Session

A. Kinderton Village Annexation Assessment (#3)

Erin Burris, Community Planner, shared two options with the board on moving forward with the Resolution of Intent to annex Kinderton Village. The combined net increase estimate from the annexation is \$196,000. The Council agreed that annexation in stages would not be a good idea; that if initiated, they would like for it to be done all at once. This would be done as an involuntary annexation and would take less than one half of the time. Mayor Ferguson told Dick Heriot, representative of Kinderton Village, that the decision on whether to annex should be made within the next 60 days. One item to consider will be the voting districts and representation on the Town Council.

B. Riverbend Drive Loop Sidewalk Preliminary Assessment

John Grey with Grey Engineering presented drawings for the sidewalk plan. The estimated cost is \$1,423,000.00. The Bermuda Run Drive project is an additional \$200,000.00. There may be allowances/grants to help cover this cost. This cost allows for trees, plantings, sitting areas, etc. There are 8 crossings included and the direction/drainage of water should not be changed. If approved, the project should last around eight months. There was concern regarding the cost and who would pay for it. Manager Lee Rollins said that there were three options – Capital Account, Assessment (consent from property owners), and Bonds. Council member Al Barnett expressed concern of what is more important between sidewalks and curbs/guttering. It was agreed that drainage problems would be addressed as they arise. The sidewalks would give a recreational facility with health benefits for the residents and would be a step forward for the community.

C. Review SWOT findings and Priorities from 2010 Planning Session/Revised Priorities (#4)

- a. Sewer – Current capacity is already allocated, but an extra 200,000 gallons of capacity has been requested from Winston-Salem to accommodate projected new growth. Mayor Ferguson expressed that we are now viewed as a “customer” instead of a “competitor” to Winston-Salem.
- b. Annexation – It was suggested by both Manager Lee Rollins and Town Attorney Brian Williams that a clear annexation report be presented to residents in Kinderton Village so they have no question on what services would be provided by The Town of Bermuda Run if they are annexed.
- c. Gate Management System – Since the January, 2010 planning session the new Capsure system was implemented – June, 2010. Action is being taken to retrieve past gate fees from residents that are behind in payments of gate fees.

- d. 158 Gate – The DOT will be conducting a traffic count to determine feasibility of putting a roundabout at the Hwy 158 entrance. It was agreed that the cost of improvements (over \$500,000.00) that was proposed to improve the intersection of Hwy 158/801 would be better put to use at the Hwy 158 gate entrance.
- e. Beautification Enhancement – We need to move beyond residential areas.
- f. Sidewalk Plan
- g. Name Change – Mayor Ferguson suggested that the Town seek professional assistance in branding the name to give us more identity.
- h. Town Center – location? Vision?
- i. Town Charter Changes

Adjourn

With no further business, Council Member Andy Hewitt made a motion to adjourn. The motion was seconded by Council Member Ed Coley. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully submitted

Lee Rollins, Town Clerk

Approved:

John H. Ferguson, Mayor

1 January 25, 2011 Agenda Meeting Minutes

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, February 22, 2011
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett; Ed Coley, John Guglielmi, Andy Hewitt and Frank Sweeten

Council Members Absent: None

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Erin Burris, Benchmark; Dick Heriot and Ken Bateman, Kinderton Village; and Cindy Griffith, Secretary

1. Call to Order

Mayor Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as presented and Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the January 25, 2011 Meeting Minutes

Council Member Andy Hewitt made a motion to approve the minutes from the January 25, 2011 Agenda Meeting. Council Member Al Barnett seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for March 8, 2011 Council Meeting:

A. **Public Hearing to receive public comment on TA 2011-01 Banquet & (#1) Event Facilities, Reception Halls**

Town Manager Lee Rollins presented a text amendment proposed to remove the requirement that no outdoor music or speakers are permitted at banquet and event facilities. This is primarily in light of the upcoming Winn Mock Barn and Sterling Events needing outdoor speakers for wedding receptions and other events. The Barn is not located near a residential area and the Planning Board is in approval. Erin Burris, Community Planner, suggested the Town look into a Noise Ordinance in the future.

Motion made that the Council approve a public hearing be set for Tuesday, March 8, 2011 to receive public comment by Council Member John Guglielmi and Council Member Ed Coley seconded the motion. The motion was approved by a vote of four (4) in favor and one (1) opposed.

6. Information Items:

A. Kinderton Village Annexation Report and DRAFT Voting Districts Map (#2)

Erin Burris, Community Planner, presented a proposal of the new voting districts showing changes if/when Kinderton Village is annexed. Commercial areas are clearly included and districts would be made up of 500 people or 300 dwelling units.

After further review and discussion, the Council has the opportunity to move forward with the annexation process by approving that a Resolution of Intent be placed on the March 8, 2011 Agenda for discussion. *Motion was made by Council Member Ed Coley and Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

7. New Added Business or Action Items as Requested

Town Manager Lee Rollins shared a letter with the Council (that was received 2/22/11) regarding Bermuda Run having a separate ZIP Code. We do not meet criteria at this time (25,000 delivery points).

8. Town Manager Update

Attached and included by reference.

9. Adjourn

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member John Guglielmi. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully submitted

Lee Rollins, Town Clerk

Approved:

John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, March 29, 2011
9:00 a.m. – Town Hall

Council Members Present: Ed Coley, Al Barnett, John Guglielmi, Andy Hewitt and Frank Sweeten

Council Members Absent: John Ferguson, Mayor

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Dick Heriot, Kinderton Village; Bill Holdgrafer, and Cindy Griffith, Secretary

1. Call to Order

Mayor Pro-tem, Ed Coley called the meeting to order.

2. Adoption of the Agenda

Council Member Andy Hewitt made a motion to adopt the agenda as presented and Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

3. Approval of the February 22, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the February 22, 2011 Agenda Meeting. Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

4. Citizen's Comments – None

5. Information Items:

2011-2012 Budget Preparation: General Fund Revenue and Expenditures (# 1)

Town Manager Lee Rollins reviewed the preliminary 2011-2012 General Fund budget, with requests from the Humane Society of Davie County, the Piedmont Triad Partnership, and the County of Davie. The only request for funds that is in the preliminary budget is the Humane Society (under "other" in the budget). The Town of Bermuda Run has given to the Humane Society for the past several years \$5,000 – they are asking for \$7,000 this year.

It was agreed that the Piedmont Triad Partnership is more of a County function and The Town of Bermuda Run has not participated in the past. The request from the County of Davie for Economic Development funds will be considered; however it may not be under a contractual obligation which is presented in the request.

6. New Added Business or Action Items as Requested

- Town Manager Lee Rollins proposed replacing remaining ivy trees along Ivy Circle and down Hwy 801 with Nellie Stevens trees after we see how the new Nellie Stevens thrive. This will be costly and will need to be done in sections.
- The Planning Board will meet twice in April due to the Comprehensive Plan. The Council was urged by Janet Smith, Chair to encourage residents to attend the input meetings to voice their opinion on what they want the Town to look like in years to come.
- Al Barnett expressed that he would like to see the City Limit signs at the parameters of the Town. Lee Rollins has met with DOT who is making these changes. "City" will be replaced with "Town".

7. Town Manager Update

Attached and included by reference.

8. Adjourn

With no further business, Council Member John Guglielmi made a motion to adjourn. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of four (4) in favor and none opposed.

Respectfully submitted


Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, April 26, 2011
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett, John Guglielmi, Andy Hewitt and Frank Sweeten

Council Members Absent: Ed Coley

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Erin Burris, Community Planner; Ken Bateman, Kinderton Village; Bill Holdgrafer, Bermuda Run West; and Cindy Griffith, Secretary

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member Al Barnett made a motion to adopt the agenda as presented and Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

3. Approval of the March 29, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the March 29,, 2011 Agenda Meeting. Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for the May 10, 2011 Council Meeting

A. Public Hearing to Receive Public Comment on TA 2011-02 Development Agreement (# 1) Clarification & Design Waiver Notification

The primary intent of the proposed text amendments is to clarify the approval processes for development agreements as authorized by NC General Statute 160A-400.22. The Planning Board recommended approval of the staff recommendation with changes. The Planning Board recommended that the following phrase be added to proposed section 4-1.11.12(B)(3), "*Prior to approval of a development agreement with design waivers, the Planning Board shall review and comment on the proposed design wavers.*" This applies primarily to properties of 25 acres or larger and provides insurance to a developer. *Council Member Frank Sweeten made the motion for this action item to have a public hearing at the May 10 Council Meeting. Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.*

B. Public Hearing to Receive Public Comment on TA 2010-03 Sign Regulations (# 2)

For the past eight months, the Planning Board has worked on preparing text amendments intended to improve the quality of signage in the Town of Bermuda Run zoning jurisdiction. Erin Burris, Community Planner provided photos of signs not in compliance and explained reasons for non-compliance. If approved, property owners would be given seven (7) years to make their signs compliant with new regulations. It was proposed that landscaping compliance be 90 days, this caused a lot of discussion among the Council. Mayor Ferguson recommended changing 90 days to 1 year, he also expressed that planting flowers in front of an ugly sign would not make it look better. Council Member Andy Hewitt (also a business owner) expressed that this would be a huge benefit to the Town of Bermuda Run. Temporary signs are not allowed, and the ones in the Kinderton area will be no longer needed once the new approved comprehensive sign for Kinderton arrives. Council Member Frank Sweeten expressed his dislike for temporary signs. *Council Member John Guglielmi made the motion for public hearing at the May 10 Council Meeting, seconded by Andy Hewitt. The motion was approved by a vote of four (4) in favor and none opposed.*

C. Public Hearing to Receive Public Comment on the Proposed 2011-2012 Town Budget

Town Manager Lee Rollins presented the Council with a packet of the proposed budget numbers which will also be posted on the Town's website. *Council Member Frank Sweeten made a motion for this to be included as public hearing at the May 10 Council Meeting. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of four (4) in favor and none opposed.*

D. Public Hearing Regarding the Resolution of Intent to Consider Annexation

The public hearing regarding the Annexation of Kinderton Village is already set for May 10. This will also be on the May 10th Council Meeting Agenda.

6. New Added Business or Action Items as Requested

Town Manager Lee Rollins presented the Council with a copy of the Survey that will be given to all Bermuda Run residents regarding the Comprehensive Plan. Community Planner, Erin Burris gave the Council a summary of what to expect at the Public Input Meetings that will be held on May 2nd, 3rd, and 5th and encouraged the Council to attend one of the Public Input Meetings.

7. Town Manager Update

Attached and included by reference.

8. Adjourn

With no further business, Council Member John Guglielmi made a motion to adjourn. The motion was seconded by Council Member Andy Hewitt. The motion was approved by a vote of four (4) in favor and none opposed.

Respectfully submitted


Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, May 24, 2011
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett, John Guglielmi, Andy Hewitt and Frank Sweeten

Council Members Absent: Ed Coley

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Bill Holdgrafer, Bermuda Run West; and Cindy Griffith, Secretary

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as presented and Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

3. Approval of the April 26, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the April 26, 2011 Agenda Meeting. Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for the June 14, 2011 Council Meeting

A. Request: Public Hearing – DA 2011-01 Wake Forest Baptist Health Development Agreement

Representatives from Wake Forest Baptist Health presented to the Planning Board on May 18, 2011. Attorney Brian Williams has reviewed the Development Agreement. Janet Smith, Planning Board Chair commented that she was very impressed with the level of thought and detail by the hospital's proposal. Future buildings will conform to our design standards, but her main concern was the planning of out parcels surrounding the future hospital. Town Manager, Lee Rollins and the Council discussed water/sewer needs and options available. Mr. Rollins asked that The Council set a public hearing for the June 14 Council Meeting.

Council Member John Guglielmi made the motion for public hearing at the June 14, 2011 Council Meeting seconded by Al Barnett. The motion was approved by a vote of four (4) in favor and none opposed.

B. Adoption of the 2011-2012 Town Budget

The proposed Town Budget has been duly communicated through a public hearing and posting on the Town Website. A copy has also been available at the Town Hall for review. The Town Hall has received no comment on the proposed budget. The Town has had requests to increase amounts paid to the Humane Society, but the Council agreed that the amount should remain the same. Council should approve a budget at the June 14 meeting, or call a special meeting to approve by July 1, 2011.

C. Consideration to Adopt Annexation Ordinance of Kinderton Village Area

The Council will have the opportunity to adopt an annexation ordinance of the Kinderton Residential Area at the June 14 Council Meeting. Brian Williams, Town Attorney, is currently reviewing a DRAFT Ordinance. (The annexation completion date should be July 1, 2012.)

D. Contract to Collect Residential Garbage

The Town's current contract with Republic Services to collect residential garbage expires on July 1, 2011. American Waste Systems has submitted a proposal for consideration and their rates appear to be lower than that of Republic. Republic has also submitted a new proposal. The Council has asked Lee Rollins to check some of the references provided by American Waste Systems. *Due to the potential annexation of Kinderton Residential, Lee Rollins proposed that the Town negotiate a contract for one (1) year.*

E. Hwy 158 Gate Traffic Solutions Study Scope of Services for Engineering Services Agreement

Grey Engineering has provided a Scope of Services for the Hwy 158 Gate Traffic Solutions Study for the Council's review and comments. *The goal is to have an Engineering Service Agreement ready for the June 14 meeting for review and adoption.*

F. Recommendation of Stephanie Wark to be Appointed Town of Bermuda Run Representative to the Triad ABC Board

The current Triad ABC Board representative, Sam Krause, will be completing the second of two terms on June 30, 2011. He has recommended Mrs. Stephanie Wark of 849 Riverbend Drive to be appointed as the new representative, effective July 1, 2011. Mrs. Wark has received approval from her employer, BB&T to sit on the Triad ABC Board if appointed. *The Council will need to vote to appoint a new representative at the June 14 meeting.*

G. Recommendation of Dick Heriot and Ken Dohleman to be Reappointed to the Town Planning Board

Dick and Ken's appointments will expire on June 30, 2011. Planning Board Chair Janet Smith has recommended that due to the work in process of the Comprehensive Plan, both gentlemen be reappointed to serve three-year terms. *The Council will need to vote to appoint the two positions on the Town Planning Board at the June 14th meeting.*

6. New Added Business or Action Items as Requested

Susan Hatchel gave a presentation to the Board regarding the Yadkin River Greenway Study. The main "theme" that is being conveyed by the Comprehensive Plan surveys is "Connectivity" and this would be what people are asking for. The plan would be in stages, totaling over \$13.5 million.

7. Town Manager Update

Attached and included by reference.

8. Adjourn

With no further business, Council Member Andy Hewitt made a motion to adjourn. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of four (4) in favor and none opposed.

Respectfully submitted



Lee Rollins, Town Clerk

Approved:



John H. Ferguson, Mayor

05 Minutes ~ May 24, 2011 Agenda Meeting Minutes

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, June 28, 2011
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett, Ed Coley, and Frank Sweeten

Council Members Absent: John Guglielmi, Andy Hewitt

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Dick Heriot, Kinderton Village; Erin Burris, Benchmark Planning; and Cindy Griffith, Secretary

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member Al Barnett requested that an item (Council Election Terms) be added to the agenda. Council Member Ed Coley then made a motion to adopt the agenda as presented and Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

3. Approval of the May 24, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the May 24, 2011 Agenda Meeting. Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for the June 14, 2011 Council Meeting

A. Appoint Members to the Town of Bermuda Run Tourism Development Authority

On October 12, 2010 the Council adopted a resolution implementing a 3% Tourism Occupancy Tax within the Town and established the framework for a Tourism Development Authority. It is now time to appoint up to three but no more than seven members to the Authority. Lee Rollins, Town Manager recommended the following three initial appointees: Carolyn Mcmanamy, Davie County Chamber of Commerce President; Tabitha Renegar, Manager of WinMock Barn; Anna Lowe, Marketing Manager of Hampton Inn.

The group will meet quarterly and Lee Rollins will serve as the Finance Manager to the group. Members can be added as needed – if more hotels come in to the area for example.

9. Adjourn

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of three (3) in favor and none opposed.

Respectfully submitted



Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, July 26, 2011
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett, Ed Coley, John Guglielmi and Frank Sweeten

Council Members Absent: Andy Hewitt

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board; Erin Burris, Benchmark Planning; and Cindy Griffith, Secretary

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as presented and Council Member Al Barnett seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

3. Approval of the June 28, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the June 28, 2011 Agenda Meeting. Council Member John Guglielmi seconded the motion. The motion was approved by a vote of four (4) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for the August 9, 2011 Council Meeting

A. Public Hearing: Proposed Text Amendments to the Zoning Ordinance (# 1)

The intent of the text amendment is to require a Special Use Permit for Nursing Institutions or Congregate Care Facilities located in residential zoning districts and to remove the maximum building size requirement. Erin Burris, Community Planner, explained the Council that Bermuda Commons has requested to expand and the maximum size is not 40,000 square feet per building.

Council Member Al Barnett made the motion that the Council set a date of August 9, 2011 to hold a public hearing in consideration of the proposed text amendments. The motion was seconded by Council Member Ed Coley. The motion was approved by a vote of four (4) in favor and none opposed.

B. Public Hearing: R2011-05 Resolution of Intent (#2)

The Council set a date of August 9, 2011 at 7:00 PM to hold a public hearing regarding the Resolution of Intent to consider and ordinance amending the Town Charter. *The Council will not be able to vote on this matter after the public hearing.*

C. Resolution Honoring Sam Krause (#3)

Lee Rollins, Town Manager proposed the Council adopt a Resolution Honoring Sam Krause's service to the Town as the Triad ABC Board Representative from the Town of Bermuda Run.

D. Interlocal Agreement Between the County of Davie and the Town of Bermuda Run (#4)

The proposed Interlocal Agreement solidifies the County of Davie collecting the past-due sewer assessments and past-due gate fees. There are 17 residents that have not paid their balance on sewer assessments.

Council Member John Guglielmi made the motion to approve the Interlocal Agreement. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of four (4) in favor and none opposed.

6. Informational Items

A. DRAFT - Ordinance to Regulate the Use of Golf Carts on Town Streets (#5)

The Council further discussed the proposed need for registration of golf carts and reviewed the most recent draft ordinance. Main concern is public safety and the prevention of underage drivers on the public streets. It was agreed to consider at the August 9, 2011 Council Meeting. Consideration to register golf carts will be reviewed at a later date.

7. New Added Business or Action Items as Requested

- Letters will be mailed residents and property owners in Kinderton Village containing Annexation Consent Forms that are to be signed and returned to the Town Hall before 12/31/11.
- Lee Rollins, Town Manager informed the Council that the temporary signs at the entrance to Kinderton Village will be removed as of Friday, July 29. Business owners have been notified.
- Trees need to be trimmed in the Kinderton Village area.
- The location of the Bermuda Run Town Center was discussed. Nothing has been done as of 7/26/11 in regard to zoning.

8. Town Manager Update (#6)

Attached and included by reference.

9. Adjourn

With no further business, Council Member Frank Sweeten made a motion to adjourn. The motion was seconded by Council Member Ed Coley. The motion was approved by a vote of four (4) in favor and none opposed.

Respectfully submitted


Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, August 23, 2011

9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett, John Guglielmi and Frank Sweeten

Council Members Absent: Ed Coley, Andy Hewitt

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Janet Smith, Chair-Bermuda Run Planning Board

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member Al Barnett made a motion to adopt the agenda as presented and Council Member John Guglielmi seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

3. Approval of the July 26, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the July 26, 2011 Agenda Meeting. Council Member John Guglielmi seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for the August 23, 2011 Council Agenda Meeting

A. Resolution Supporting Replacement of Bert's Way Bridge (#1)

The NCDOT Environmental Assessment of the proposed widening of I-40 between Harper Road in Clemmons and HWY 801 in Bermuda Run does not recommend replacement of the Bert's Way Bridge. Both the Yadkin River Greenway Feasibility Study and the early drafts of the Planning Board's work on the Town Comprehensive Plan support the need for Bert's Way Bridge as an important component to the Town's multi-modal connectivity. *Council Member John Guglielmi made a motion to adopt the proposed resolution supporting the replacement of Bert's Way Bridge as part of the widening of I-40. Council Member Al Barnett seconded the motion. The motion was approved by a vote of three (3) in favor and none opposed.*

6. Proposed Action Items for the September 13, 2011 Council Meeting

A. Request to Amend the Kinderton Village Area Annexation Report Extension of Services Section "Solid Waste Collection" to Provide Multi-Family Solid Waste Pick-Up (#2)

The Kinderton Village Area Annexation Report of March 8, 2011 does not include the pick up of multi-family residential properties under proposed expenditures for solid waste collection. Town Manager Lee Rollins proposes that service to multi-family residences be added as an extension of services to the report. Mayor Ferguson asked Kinderton Village resident Dick Heriot if he had any comments. Mr. Heriot stated that the only negative at the public hearing was the fact that multi-family trash was not included as a service in the original report. He is in favor of adding the service and if the Council chooses to vote for the change, he would like a letter from Lee Rollins that he can disseminate to the Kinderton Village residents. The Council will consider a vote on this issue at the September 13, 2011 Council Meeting.

7. New Added Business or Action Items as Requested

- Council Member Frank Sweeten asked that the Planning Board Review the allowance in the zoning ordinance for temporary seasonal agricultural sales by permit. He is concerned that conceivably, multiple produce stands could go up at the same time and have an adverse visual impact on the Town. Mayor Ferguson stated that he believes that something like this is a service to the citizens. The Council did ask that Council Member Sweeten's concerns be taken to the Planning Board to review the components of the zoning ordinance related to permitting of temporary seasonal agricultural sales.
- Council Member John Guglielmi expressed continued concern with speeding on Town streets. He wants to come up with ways to keep traffic at reasonable speeds. Council Member Al Barnett likes the idea of "traffic calming" and encouraged further thought on this subject.
- Mayor Ferguson asked the Council to think of ways the Town can better leverage assets and efficiencies with other governmental entities. For example, how can the Town look at better leveraging the use of Tanglewood Park for its citizens?

8. Town Manager Update (#3)

Attached and included by reference.

9. Adjourn

With no further business, Council Member John Guglielmi made a motion to adjourn. The motion was seconded by Council Member Frank Sweeten. The motion was approved by a vote of three (3) in favor and none opposed.

Respectfully submitted



Lee Rollins, Town Clerk

Approved:



John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, September 27, 2011
9:00 a.m. – Town Hall

<u>Council Members Present:</u>	John Ferguson, Mayor; Al Barnett, John Guglielmi, Ed Coley, Andy Hewitt, and Frank Sweeten
<u>Council Members Absent:</u>	None
<u>Also Present:</u>	Lee Rollins, Town Manager; Brian Williams, Town Attorney; Cindy Griffith, Secretary; Janet Smith, Chair-Bermuda Run Planning Board

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as presented and Council Member Ed Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the August 23, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the August 23, 2011 Agenda Meeting. Council Member Frank Sweeten seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for the September 27, 2011 Council Agenda Meeting

A. NCDOT Traffic – Directional Signs Agreement (# 1)

The agreement allows NCDOT to move forward to fabricate and install “Welcome to Bermuda Run” Town Limit signs at four locations on US 158 and NC 801. The cost for the signs will be \$2,000.00. *Council Member Al Barnett made a motion to move forward with the project. Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.*

6. New Added Business or Action Items as Requested

- Town Manager Lee Rollins presented the DRAFT map from Ramey Kemp regarding the 158 Bermuda Run entrance. There have been traffic concerns at this area for a while, and they have grown due to the Soccer Park traffic. Both Kemp and DOT have said that a stop light at the intersection is not an option. The best option is a Round-a-Bout (Traffic Circle). With this proposal, the 158 Guard House will have to be moved. Projected start of this project is Spring of 2012. Council Members John Guglielmi and Andy Hewitt discussed options of adding sidewalks during the 158 project. Mayor Ferguson expressed that a Town Information Meeting should be held before the project begins.

7. Town Manager Update (# 3)

Attached and included by reference.

9. Adjourn

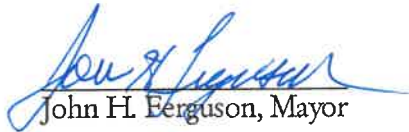
With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member Frank Sweeten. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully submitted



Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, October 25, 2011
9:00 a.m. – Town Hall

Council Members Present: John Ferguson, Mayor; Al Barnett, John Guglielmi, Ed Coley, Andy Hewitt, and Frank Sweeten

Council Members Absent: None

Also Present: Lee Rollins, Town Manager; Brian Williams, Town Attorney; Cindy Griffith, Secretary; Janet Smith, Chair-Bermuda Run Planning Board; John Grey and Joy Howard, John Grey Engineering

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as presented and Council Member Al Barnett seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the September 27, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the September 27, 2011 Agenda Meeting. Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – None

5. Proposed Action Items for the October 25, 2011 Council Agenda Meeting:

A. UPDATE: Hwy 158 Gate Traffic Solutions Study (# 1)

John Grey, Grey Engineering provided an update regarding the cost estimates for the proposed traffic circle at the Hwy 158 Gate and Twin City Soccer entrance. DOT has been very engaged with Kemp and Associates during this study. A proposal was made that instead of just moving the existing 158 Gate House, a new one be built at this time.

B. DRAFT: Utility Availability Fee Ordinance (# 2)

Town Manager Lee Rollins reviewed a proposed ordinance that would require connection to water or sewer within the Town limits, or impose an availability fee (minimum water and/or sewer fee). It is proposed that this take affect during the next budget cycle (July 1, 2012). Proposal was made by Lee Rollins to vote on this ordinance during the January, 2012 Council Meeting. Before that time, research will be done to determine the number of residents affected and the fees imposed by the Towns of Mocksville and Clemmons.

6. **New Added Business or Action Items as Requested**

A. **Support for a Dedicated Left Turn Signal at Hwy 801/Hwy 158 Intersection**

Council member John Guglielmi has requested that the Council take some type of formal action to request that the NCDOT install a dedicated left turn signal coming from Hwy 801 South and turning left onto Hwy 158 West toward Mocksville. This has been addressed in the past, and the DOT has said that the "traffic patterns do not warrant a signal". However, the Council feels that this is a dangerous intersection and something needs to be done. Lee Rollins agreed to send an official letter to the DOT and prepare a resolution for the November, 2011 meeting.

B. **Status of Gate Fees Placed on Property Tax Bills**

Town Manager, Lee Rollins reviewed the prior history of assessment of gate fees and clarified that owners of multiple properties must pay gate fees/property taxes on those multiple properties unless they combine their lots into one.

7. **Town Manager Update (# 3)**

Attached and included by reference.

9. **Adjourn**

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully submitted


Lee Rollins, Town Clerk

Approved:


John H. Ferguson, Mayor

Bermuda Run Town Council

AGENDA MEETING MINUTES

Tuesday, November 22, 2011

9:00 a.m. – Town Hall

Council Members Present:

John Ferguson, Mayor; Al Barnett, John Guglielmi, Ed Coley, Andy Hewitt, and Frank Sweeten

Council Members Absent:

None

Also Present:

Lee Rollins, Town Manager; Brian Williams, Town Attorney; Cindy Griffith, Secretary; Janet Smith, Chair-Bermuda Run Planning Board; Erin Burris, Benchmark Planning; Eddie Carrick, Town Auditor; Dick Heriot, Kinderton Village; Shirley Cagle and Jerry West, Council-Elect; and Ken Rethmeier, DrPH, Mayor-Elect

1. Call to Order

Mayor John Ferguson called the meeting to order.

2. Adoption of the Agenda

Council Member John Guglielmi made a motion to adopt the agenda as presented and Council Member Andy Hewitt seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

3. Approval of the October 25, 2011 Meeting Minutes

Council Member Al Barnett made a motion to approve the minutes from the October 25, 2011 Agenda Meeting. Council Member Ed Coley seconded the motion. The motion was approved by a vote of five (5) in favor and none opposed.

4. Citizen's Comments – None

5. Information Items:

A. Report of Town Audit for the Year Ended June 30, 2011

Eddie Carrick, Town Auditor presented the audit to the Council and opened the floor to questions. He stressed that due to the current economy, the Town remain conservative. He feels that the Town's biggest benefit is stable/increasing tax base and that it is within the top 2-3 towns regarding financial stability.

B. Update: Town of Bermuda Run Comprehensive Plan

Erin Burris with Benchmark Planning provided the Council with an update of the DRAFT Comprehensive Plan. Erin gave an overview of the purpose, process, vision, and goals of the plan. *The entire plan hinges on sewer capacity. The Council thanked Erin, Janet Smith, and the Planning Board for their hard work on this project. The Planning Board is scheduled to complete revisions of the DRAFT at the December 14 meeting.

6. **Proposed Action Items for the December 13, 2011 Council Agenda Meeting:**

A. **Recognition of Departing Mayor and Council Members**

Honor the public service of Al Barnett, John Ferguson and Frank Sweeten for their contributions to the Town of Bermuda Run and its citizens.

B. **Request that the December 27 Agenda Meeting be Cancelled**

When the original meeting schedule was approved, it was not realized that December 27th fell during the Christmas holiday of December 26th and December 27th.

C. **Appoint a Delegate to the Board of the Piedmont Triad Regional Council**

On July 1st, 2011, the Northwest Piedmont Council of Governments (NWPCOG) and the Piedmont Triad Council of Governments (PTCOG) merged to become the Piedmont Triad Regional Council (PTRC). The PTRC is a voluntary association of municipal and county governments, enabled by state law to promote regional issues and cooperation among members. The PTRC serves 72 member governments in and around the Greensboro/Winston-Salem/High Point metro including the following twelve counties: Alamance, Caswell, Davidson, Davie, Forsyth, Guilford, Montgomery, Randolph, Rockingham, Stokes, Surry, and Yadkin Counties. Each member of the PTRC appoints an elected official to serve on the Board of Delegates. The Board sets policy and appoints the Executive Director who manages the affairs of the PTRC. The full board meets six times a year, every other month, in February, April, June, August, October, and December.

D. **Appoint Mayor Pro Tem**

Pursuant to North Carolina General Statute 160A-70: "At the organizational meeting, the council shall elect from among its members a mayor pro tempore to serve at the pleasure of the council. A councilman serving as mayor pro tempore shall be entitled to vote on all matters and shall be considered a councilman for all purposes, including the determination of whether a quorum is present. During the absence of the mayor, the council may confer upon the mayor pro tempore any of the powers and duties of the mayor".

E. **Adopt the 2012 Council Meeting Schedule**

F. **Dual Signatures on Checks**

Pursuant to North Carolina General Statute 159-25(b): "Except as otherwise provided by law, all checks or drafts on an official depository shall be signed by the finance officer or a properly designated deputy finance officer and countersigned by another official of the local government for this purpose by the governing board. If the board makes no other designation, the chairman of the board or chief executive officer of the local government shall countersign these checks and drafts. The governing board of a unit may waive the requirements of this subsection if the board determines that the internal control procedures of the unit or authority will be satisfactory in the absence of dual signatures".

7. **Town Manager Update (#3)**

Attached and included by reference.

8. Adjourn

With no further business, Council Member Ed Coley made a motion to adjourn. The motion was seconded by Council Member Al Barnett. The motion was approved by a vote of five (5) in favor and none opposed.

Respectfully submitted



Lee Rollins, Town Clerk

Approved:



Kenneth A. Rethmeier, DrPH - Mayor